

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 06, 2026
8:30 a.m.

2. CHRISTINA YORKEY V. AARON LAUFER

24FL1299 / 25FL0631

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on March 20, 2026, in Case Number 24FL1299² to set child support for the parties' two children.³ Petitioner submitted a current Income and Expense Declaration (I&E) concurrently with the RFO. Proof of service filed April 03, 2026, shows the RFO and supporting documents, as well as the court's Notice of Tentative Ruling, were personally served upon the Respondent on April 02, 2026.

On April 09, 2026, Petitioner filed an amended I&E, a copy of which was served upon Respondent on April 06, 2026, via mail, according to the proof of service filed April 09, 2026.

On April 24, 2026, Respondent filed a Responsive Declaration and current I&E, both of which were personally served upon Petitioner that same day according to the proof of service, also filed April 24, 2026. The court notes that this is untimely service by one court day; however, the court exercises its discretion to consider Respondent's untimely filings. (Cal. Rules of Ct., R. 5.94, subd. (c).)

For the purposes of determining child support, Respondent's custody timeshare is zero because he has limited supervised visits only.

Petitioner's amended I&E filed April 09, 2026, indicates she started a new job as secretary to the principal for Lake Tahoe Unified School District on January 26, 2026. For the purposes of determining child support, the court does not consider Petitioner's income related to her previous job as a substitute teacher because that is not current information. Petitioner states that in her current position, she is paid once per month, 11 times per year. Attached to Petitioner's amended I&E are two paystubs from her current employer: (1) the first paystub was issued February 27, 2026, with an "end date" of February 28, 2026, and shows a gross payment of \$3,640.04; and (2) the second paystub was issued March 27, 2026, with an "end date" of March 31, 2026, and shows a gross payment of \$4,253.00. The gross year-to-date total on the March 2026 paystub is \$15,591.23, which would appear to indicate that Petitioner's January 2026 gross income was \$7,698.19. However, that does not appear to be the correct January 2026 gross income for Petitioner's current position, which she started on January 26, 2026, and claims to earn \$24.54 per hour while working roughly 40 hours per week. Therefore, the court calculates Petitioner's gross monthly income as follows: as previously stated, Petitioner declared under penalty of perjury that she earns \$24.54 per hour and works roughly 40 hours per week. Thus, Petitioner earns \$981.60 per week. There are 4.3 weeks in a month and Petitioner gets paid

² The court notes there is a separate dissolution case pending between the parties in Case Number 25FL0631. The court will address case management of the two separate cases further below in the tentative ruling.

³ The court notes there is no evidence that the Department of Child Support Services (DCSS) is involved in this case.

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11 months out of the year. Thus, her gross annual income is \$46,429.68 (\$981.60 per week x 4.3 weeks per month x 11 months = \$46,429.68). Her gross monthly income is \$3,869.00, rounded down to the closest dollar amount (\$46,429.68 / 12 months = \$3,869.14).

Additionally, Petitioner has the following monthly deductions: (1) \$49.00 for union dues; (2) \$138.00 for medical insurance; and (3) \$315.00 for PERS retirement (the court averages the two different amounts reflected in the February and March 2026 paychecks).

The Respondent's I&E indicates he works as a painter and claims his gross monthly income is \$4,400.00. However, Respondent submitted no documentation (i.e., paystubs, tax returns, etc.) supporting this claim. Petitioner stated under penalty of perjury that he works 40 hours per week and gets paid \$40.00 per hour. The court will use this information to calculate his gross monthly income as \$6,933.00, rounded down to the closest dollar amount (\$40.00 per hour x 40 hours per week x 52 weeks in a year = \$83,200.00 gross annual income; \$83,200.00 / 12 months = \$6,933.33).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$2,097.00 beginning April 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Respondent to pay \$733.95 Child Support for the month of March 2026 (35 percent of the monthly support amount). This results in a Child Support arrears balance of \$4,927.95, including March through May 2026, inclusive. The court orders Respondent to pay Petitioner \$985.59 per month as and for arrears beginning June 01, 2026. Further arrears payments are due on the 1st of each month until paid in full (approximately five months). If there is any missed or late payment, the full amount is due and owing.

Lastly, the court addresses the issue of the separate dissolution case. For case management purposes, there is no viable reason that there be two separate case files for these matters, which involve the same parties. Therefore, the court, on its own motion, consolidates the two cases. Although later filed, the court will designate 25FL0631 as the lead case. All future filings shall be filed under the lead case number.

TENTATIVE RULING #2: THE RFO IS GRANTED IN PART. RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$2,097.00 BEGINNING APRIL 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT ORDERS THE RESPONDENT TO PAY \$733.95 CHILD SUPPORT FOR THE MONTH OF MARCH 2026 (35 PERCENT OF THE MONTHLY SUPPORT AMOUNT). THIS RESULTS IN A CHILD SUPPORT ARREARS BALANCE OF \$4,927.95, INCLUDING MARCH THROUGH MAY 2026, INCLUSIVE. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$985.59 PER MONTH AS AND FOR ARREARS BEGINNING JUNE 01, 2026. FURTHER ARREARS PAYMENTS ARE DUE ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY FIVE MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT, THE FULL AMOUNT IS DUE AND OWING. (CONTINUED ON NEXT PAGE.)

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THE COURT, ON ITS OWN MOTION, CONSOLIDATES CASE NUMBERS 24FL1299 AND 25FL0631, AND DESIGNATES 25FL0631 AS THE LEAD CASE. ALL FUTURE FILINGS SHALL BE FILED UNDER THE LEAD CASE NUMBER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	2	2026				
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	8689	8762
Filing status	MFS->	HH/MLA	Nets(adjusted)		Percent change	0%	1%
# exemptions	1 *	3 *	Support		Father		
Wages+salary	6933	3869	Father	5243	Payment cost/benefit	-2097	-1828
Self-employed income	0	0	Mother	3446	Net spendable income	3146	3415
Other taxable income	0	0	Total	8689	Change from guideline	0	269
TANF+CS received	0	0	Support		% of combined spendable	36%	39%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	371%
New spouse income	0	0	Guideln CS	2097	Total taxes	1690	1241
401(k) employee contrib	0	0	Alameda SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	2097	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	5031	5031
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	138			Payment cost/benefit	2097	1901
Other medical expense	0	0			Net spendable income	5543	5347
Property tax expense	0	0			Change from guideline	0	-197
Ded interest expense	0	0	Proposed		% of combined spendable	64%	61%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-271%
Misc tax deductions	0	0	CS	2277	Total taxes	-79	297
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	49	Total	2277	# withholding allowances	0	0
Mandatory retirement	0	315	Saving		Net wage paycheck	3200	3200
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	2097	Father	2097	Father
	0 - 100	0	0	0	Father	787	Father	787	Father
	0 - 100	0	0	0	Father	1311	Father	1311	Father